

THE LAKES TREATMENT CENTER v. THE RESORT AT LAKE TULLOUGH et al

21CV45585

DEFENDANT'S MOTION TO SET ASIDE ENTRY OF DEFAULT

This is a dispute involving a commercial lease with a purported option to buy. Plaintiff (tenant) contends that defendants (current and former owners) failed to honor a right of first refusal or to maintain the property consistent with the terms of the lease agreement. Before the Court is a motion by co-defendant The Resort at Lake Tulloch, LLC to set aside entry of default. The motion is GRANTED.

Plaintiff reportedly effectuated service of the summons on The Resort at Lake Tulloch, LLC, by leaving a copy of the service package with an unidentified male answering the door at 1034 E. Belmont Abbey Lane, Claremont, CA 91711-1463. According to the POS, this was an attempt to sub-serve the agent for service of process. The POS indicates that the address where service occurred was a home, not a business.

Pursuant to CCP §415.20(a), an entity's agent for service of process can only be sub-served "by leaving a copy of the summons and complaint during usual office hours *in his or her office or, if no physical address is known, at his or her usual mailing address ... with the person who is apparently in charge thereof.*" Emphasis added. In other words, you cannot sub-serve an entity's agent for service of process at the agent's personal residence if a business or mailing address is known. It appears from the papers that this agent – Jason Giambi – lives in Nevada. (See Greene Decl Para 4.) Nevertheless, it was error for the process server to mark box 5.(b)(2) on the POS. Since service was defective, the Request for Entry of Default was voidable upon inspection. As such, it must now be set aside.

Even without the service anomaly, this Court finds that relief is warranted under CCP §473(b) based on inadvertence, mistake and surprise. (See *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Fasuyi v. Permatex* (2008) 167 Cal.App.4th 681, 701.) Although "mandatory" relief is also warranted since counsel confessed his confusion regarding the drop-dead date for filing a responsive pleading (see *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1414; *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 609), the right to recover costs is not triggered here since relief is warranted on other grounds. Thus, plaintiff's request to be reimbursed in lieu of simply stipulating to the set-aside is denied.

Default set aside. Defendant to file responsive pleading within 5 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

FRENCH v. CALAVERAS COUNTY BOARD OF SUPERVISORS

21CV45707

RESPONDENT'S DEMURRER TO PETITION AND PETITIONER'S MOTION FOR WRIT OF MANDATE

This is a traditional mandamus action involving the County's alleged ministerial duty to honor petitioner's Sierra Vista Parcel Map 2005-082 (hereinafter "map") and approved as a tentative parcel map by the planning commission in 2008, to subdivide 27+ acres into four parcels. The issue is whether the planning commission's approval of the map expired, or whether it was extended pursuant to statute. The County deemed the map expired, and thus unavailable to record. The planning commission denied petitioner's appeal, as did the Board of Supervisors.

Before the Court first is respondent's demurrer to the Petition.

A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein), or from matters outside the pleading which are judicially noticeable. The complaint is read as a whole. Material facts properly pleaded are assumed true, but contentions, deductions or conclusions of fact/law are not. In general, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (CCP §§ 425.10(a), 459; in accord, *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Gray v. Dignity Health* (2021) 70 Cal.App.5th 225, 236 n.10.)

Although the demurrer is based on a number of grounds, this Court finds that the operative pleading does not include sufficient facts to support issuance of any mandate based upon breach of a ministerial duty. Where the demurrer is based on the pleading not stating facts sufficient to constitute a cause of action, the rule is that if, upon a consideration of all the facts stated, it appears that the plaintiff is entitled to any relief, the complaint will be held good, although the facts may not be clearly stated or may be intermingled with a statement of other facts irrelevant to the cause of action shown. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714; *Wittenberg v. Bornstein* (2020) 51 Cal.App.5th 556, 566.) In other words, a general demurrer for failure to state fails if the pleading "states, however inartfully, facts disclosing some right to relief." (*Weimer v. Nationstar Mortgage, LLC* (2020) 47 Cal.App.5th 341, 352.) Here, the allegations pled do not establish a basis for writ relief